

Court No. - 37

Case :- WRIT - C No. - 9267 of 2014

Petitioner :- Ramanuj Tripathi

Respondent :- State Of U.P. Thru Secy. And 4 Others

Counsel for Petitioner :- Rishi Kant Rai

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Vineet Saran,J.

Hon'ble Attau Rahman Masoodi,J.

On the request of Sri Baleshwar Chaturvedi, learned counsel for the respondent, put-up as fresh on 19.2.2014 so as to enable him to obtain instructions and also to place final assessment order, if any, passed in the present case.

Order Date :- 13.2.2014

aks

(Attau Rahman Masoodi J.) (Vineet Saran J.)

Court No. - 37

Case :- WRIT - C No. - 9267 of 2014

Petitioner :- Ramanuj Tripathi

Respondent :- State Of U.P. Thru Secy. And 4 Others

Counsel for Petitioner :- Rishi Kant Rai

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Vineet Saran, J.

Hon'ble Attau Rahman Masoodi, J.

On the request made by learned counsel for the contesting respondent, put-up as fresh on 25.2.2014. Learned counsel for the petitioner submits that the respondent-authorities are pressing to recover the amount in pursuance of recovery citation dated 30.1.2014 from the petitioner.

Till 25.2.2014, recovery in pursuance of recovery citation dated 30.1.2014 shall not be made from the petitioner.

Order Date :- 19.2.2014

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(Attau Rahman Masoodi J.) (Vineet Saran J.)

Court No. - 37

Case :- WRIT - C No. - 9267 of 2014

Petitioner :- Ramanuj Tripathi

Respondent :- State Of U.P. Thru Secy. And 4 Others

Counsel for Petitioner :- Rishi Kant Rai

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Vineet Saran,J.

Hon'ble Attau Rahman Masoodi,J.

Sri Baleshwar Chaturvedi, learned counsel for the respondents states that despite having sent information to the respondents no.2 and 3, he has not received any instructions as yet. He prays for and is granted a month's time to file counter affidavit. Learned Standing Counsel may also file counter affidavit within the same time. The petitioner shall have two weeks thereafter to file rejoinder affidavit. List immediately thereafter.

Interim order shall continue to operate till the next date of listing.

Order Date :- 25.2.2014

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(Attau Rahman Masoodi, J.) (Vineet Saran, J.)

Court No. - 39

Case :- WRIT - C No. - 9267 of 2014

Petitioner :- Ramanuj Tripathi

Respondent :- State Of U.P. Thru Secy. And 4 Others

Counsel for Petitioner :- Rishi Kant Rai

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Sanjay Misra,J.

Hon'ble Anant Kumar,J.

List in the next cause list.

Interim order, if any, in operation shall remain operative till the next date of listing.

Order Date :- 17.4.2014

Pravin

Court No. - 39

Case :- WRIT - C No. - 9267 of 2014

Petitioner :- Ramanuj Tripathi

Respondent :- State Of U.P. Thru Secy. And 4 Others

Counsel for Petitioner :- Rishi Kant Rai

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Sanjay Misra,J.

Hon'ble Anant Kumar,J.

Learned counsel for the respondent states that he has filed counter affidavit in the office on 29.4.2014. The same is not available on record.

Office is required to trace out the same and place it on record.

Learned counsel for the petitioner prays for and is granted three weeks' time to file rejoinder affidavit.

Learned counsel for the petitioner states that interim order is expiring today.

In view of the aforesaid, interim order, if any, shall remain operative till the next date of listing.

List immediately after three weeks.

Order Date :- 30.4.2014

Rmk.

Court No. - 39

Case :- WRIT - C No. - 9267 of 2014

Petitioner :- Ramanuj Tripathi

Respondent :- State Of U.P. Thru Secy. And 4 Others

Counsel for Petitioner :- Rishi Kant Rai

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Sanjay Misra,J.

Hon'ble Anant Kumar,J.

Learned counsel for the petitioner prays for and is granted four weeks time to file rejoinder affidavit. It is also stated that interim order is expiring today.

In view of the aforesaid, interim order, if any, shall remain operative till the next date of listing.

List immediately thereafter.

Order Date :- 22.5.2014

Mukesh Kr.

Court No. - 39

Case :- WRIT - C No. - 9267 of 2014

Petitioner :- Ramanuj Tripathi

Respondent :- State Of U.P. Thru Secy. And 4 Others

Counsel for Petitioner :- Rishi Kant Rai,P.K. Rai

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Learned counsel appearing for the petitioner prays for and is allowed three weeks' and no more further time to file rejoinder affidavit.

List after expiry of the aforesaid period.

Interim order, if any, is extended till the next date of listing.

Order Date :- 18.7.2014

Anil

Court No. - 39

Case :- WRIT - C No. - 9267 of 2014

Petitioner :- Ramanuj Tripathi

Respondent :- State Of U.P. Thru Secy. And 4 Others

Counsel for Petitioner :- Rishi Kant Rai,P.K. Rai

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

1. Heard Sri Rishi Kant Rai, learned counsel for the petitioner, learned Standing Counsel for the respondents-State and Sri Kamal Kesarwani, holding brief of Sri Baleshwar Chaturvedi, appearing for the respondent-Corporation.

2. Petitioner has challenged the recovery citation dated 30th January, 2014 whereby a sum of Rs. 95,852/- is being realized from the petitioner towards consumption of electrical energy.

3. A surprise inspection of petitioner's premises was carried out on 15th of March, 2011, wherein, it was found that petitioner was unauthorizedly using electrical energy for commercial purposes even though his connection was for residential use only. Thereafter, the respondent authorities issued a provisional assessment notice to the petitioner dated 24th of March, 2011 calling upon him to submit its reply within fifteen days. The petitioner asserts that the notice dated 24th of March, 2011 was actually not served upon the petitioner and, as such, no objection could be filed by the petitioner. A demand notice, thereafter, was issued on 27th of August, 2011. The petitioner, thereafter, sent an objection relying upon the materials made available to him pursuant to his application made under Right to Information Act. It appears that while representation of the petitioner dated 29.8.2012 remain pending, the citation impugned has now been issued, which is under challenge.

4. Learned counsel for the petitioner has invited the attention of the Court to provisional assessment notice dated 24th of March, 2011, service whereof upon the petitioner is disputed. The fact that petitioner has not been served with the provisional assessment notice, has also been asserted in Para 4 of the representation sent to respondent no.3. The argument of the learned counsel for the petitioner is that in the absence of service of provisional assessment, the petitioner could not file his objection and his

statutory right to submit a reply has been denied to him. Submission also is that the respondents have proceeded to issue the recovery citation pursuant to the provisional assessment order, without actually passing any order of final assessment. Reliance has been placed upon the observation made by this Court in Writ-C No. 24772 of 2012 (Vinod Kumar Agarwal Vs. State of U.P. and others), decided on 10.7.2012. Relevant extract of the judgment dated 10.7.2012 is reproduced:-

"2. On 30.5.2012, we passed following orders as follows:-

".....

Since large number of cases are coming from all over Uttar Pradesh in which citations are being issued under the U.P. Government Electricity Undertaking (Recovery of Dues) Act, 1958, without making any final assessment, we direct the Managing Director of the U.P. Power Corporation to issue strict instructions to all the corporations distributing electricity, and the Executive Engineers of the Electricity Distribution Divisions of these Corporations, to comply with the provisions of Section 126 of the Electricity Act, 2003. They may be given strict instructions not to issue any recovery certificate until and unless a final assessment is made in theft case, after giving opportunity to the consumers under Section 126 (1) of the Act. Even if no objection has been filed, sub-section (3) of Section 126 provide that the Executive Engineer will record finding that the provisional assessment order was served upon the consumer and thereafter make final assessment by a reasoned order. If the objections have been filed, the Executive Engineer must consider these objections in his order before making final assessment and issuing recovery certificate.

The Managing Director, U.P. will comply with this order and submit report to the Court. The Registrar General will sent a copy of this order to the Managing Director of U.P. Power Corporation, Shakti Bhawan, Lucknow. Since large number of cases are pending in this Court, the Managing Director will also consider to withdraw the recoveries in which no final assessment order has been passed. The recoveries will be sent in future only in those cases in which final assessment orders are passed by the Executive Engineer, and which will also enable the consumer to get an opportunity to file an appeal under Section 127 of the Act.

List on 10th July, 2012."

3. *Shri Mahboob Ahmad has filed an affidavit of Shri Awanish Kumar Awasthi, Chairman and Managing Director of U.P. Power Corporation Ltd, Shakti Bhawan, 14 Ashok Marg, Lucknow in compliance with the aforesaid orders. Along with the affidavit he has annexed an order dated 30.6.2012 passed by him in which he has quoted Section 126 of the Electricity Act, 2003, and Clause 6.8 of the U.P. Electricity Code, 2005 and has directed all the Corporations distributing electricity and the Executive Engineers of the Electricity Distribution Divisions to strictly follow the procedures prescribed under Section 126 of the Act and under Clause 6.8 of the Electricity Supply Code, 2005 and not to issue any recovery certificates, until and unless final assessment is made in theft case, after giving reasonable opportunity of hearing to the consumer/user under sub-section (3) of Section 126. The order, under sub-section (3) of Section 126, shall be passed within 30 days from the date of service of provisional assessment. He has also directed that the recoveries already issued without making final assessment should be withdrawn forthwith, but the same shall be issued again immediately after passing an order of final assessment and all such matters, in which recoveries are withdrawn, shall be finalized within a period of three months from the date of its withdrawal. In the last paragraph of the order dated 30.6.2012, the Chairman & Managing Director, U.P. Power Corporation Limited has directed all the officers to ensure that the recoveries will be sent in future only in those cases in which final assessment order has been passed, failing which necessary action shall be taken against the concerning/authorized officers."*

(Emphasis supplied by us)

5. Learned counsel for the respondents has, on the other hand, attempted to justify the recovery on the ground that the provisional assessment notice was served and as no objection was filed, the same was treated as final assessment in pursuance to Section 126(3) of the Electricity Act, 2003 and thereafter, recovery proceedings have rightly been issued.

6. Having considered the rival submission advanced on behalf of learned counsel for the parties, this Court finds that there is nothing on record to show that the provisional assessment notice dated 24th of March, 2011 was actually dispatched or served upon the petitioner. The Court also finds substance in the argument advanced by learned counsel for the petitioner that provisional assessment notice issued does not contain necessary ingredients required under Clause 6.8 (1)(b) of the U.P. Electricity Supply Code, 2005 inasmuch as from the perusal of the provisional

assessment notice, it does not appear that any date or time was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, has substance.

7. This Court in ***Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)*** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

8. As the petitioner has not been afforded opportunity of hearing in the matter as is mandatorily warranted under Clause 6.8 (1)(b) of the U.P. Electricity Supply Code, 2005, and even otherwise, no order of final assessment has been passed containing satisfaction of the authority about service of provisional assessment notice as is required in law, therefore, the impugned recovery proceeding cannot be sustained and is liable to be set-aside.

9. Consequently, the writ petition is allowed. The impugned recovery citation dated 30.01.2014 for recovery of electric dues Rs. 95,852/- and all consequential proceedings thereto are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. The final assessment order will be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in ***Ashok Kumar*** (supra).

Order Date :- 9.9.2014

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